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plaintiff can muster evidence “that he was arrested when otherwise similarly situated individuals not engaged in the same sort of protected speech had not been.” *Ante*, at 407. Plaintiffs who would rely on other evidence to prove a First Amendment retaliatory arrest claim appear to be out of luck, even if they could offer other, unassailable proof of an officer’s unconstitutional “statements and motivations.” *Ibid.*

To give partial credit where due: The Court sensibly rejects the absolute probable-cause bar urged by petitioners and embraced by JUSTICE THOMAS, see *ante*, at 409 (opinion concurring in part and concurring in judgment), and its contrary rule will at least allow the First Amendment to operate in some cases where it is sorely needed. The majority’s reasons for imposing a probable-cause bar in some cases but not others, however, do not withstand scrutiny. And by arbitrarily insisting upon comparison-based evidence, the majority’s rule fences out First Amendment violations for which redress is equally if not more “warranted,” *ante*, at 406, leaving the public exposed potentially to flagrant abuses.

A

The Court’s rationale for the rule it ultimately adopts is hard to discern and, once unearthed, not persuasive. Much of its opinion is spent analogizing to *Hartman* and to common-law privileges. See *ante*, at 401–402, 405–406. For the reasons JUSTICE GORSUCH explains, that reasoning is not sound. See *ante*, at 413–415, 417. Those authorities, in any event, do not support the novel rule the Court imposes. What remains is the majority’s practical concern about applying normal First Amendment standards in this context, as well as a handful of inapposite cases involving different constitutional rights.

On the practical side, the majority worries that because discerning the connection between an arrest and a retaliatory motive may involve “causal complexities,” *ante*, at 401,

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some plaintiffs who raise dubious challenges to lawful arrests may evade early dismissal under *Mt. Healthy*, see *ante*, at 403–404. Our precedents do not permit an interpretation of § 1983 to rest on such “a freewheeling policy choice,” *Malley v. Briggs*, 475 U. S. 335, 342 (1986), and in any event the majority’s concerns do not withstand scrutiny.

With regard to the majority’s concern that establishing a causal link to retaliatory animus will sometimes be complex: That is true of most unconstitutional motive claims, yet we generally trust that courts are up to the task of managing them. See *Crawford-El v. Britton*, 523 U. S. 574, 597–601 (1998). And the *Mt. Healthy* standard accounts for the delicacy of such inquiries with its but-for causation requirement, calibrated to balance governmental interests with individual rights. See 429 U. S., at 287.

As for the risk of litigating dubious claims, the Court pays too high a price to avoid what may well be a marginal inconvenience. Prevailing First Amendment standards have long governed retaliatory arrest cases in the Ninth Circuit, and experience there suggests that trials in these cases are rare—the parties point to only a handful of cases that have reached trial in more than a decade. See Brief for Petitioners 36–39 (identifying four examples); Brief for Respondent 42–49 (discussing those and other Ninth Circuit cases).¹

¹ The majority implies that the Ninth Circuit does not apply *Mt. Healthy*. *Ante*, at 404, n. 1 (“[S]ince . . . *Hartman* and *Reichle*, no court of appeals has applied [the *Mt. Healthy*] approach”). That is not readily apparent. Because *Hartman*’s no-probable-cause requirement does not apply to retaliatory police action in the Ninth Circuit, such claims are handled as “‘ordinary’ retaliation claim[s],” *Skoog v. County of Clackamas*, 469 F. 3d 1221, 1234 (2006), which in the Ninth Circuit (as elsewhere) means that retaliatory motive must be the “but-for cause of the defendant’s action,” *id.*, at 1232. That but-for causation requirement for retaliation claims derives from *Mt. Healthy*. See *Hartman v. Moore*, 547 U. S. 250, 260 (2006); *Crawford-El v. Britton*, 523 U. S. 574, 593 (1998); see also *Lacey v. Maricopa County*, 693 F. 3d 896, 916–917 (CA9 2012) (en banc) (retaliatory arrest plaintiff must show that deterrence of speech “‘was a substantial or

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Even accepting that, every so often, a police officer who made a legitimate arrest might have to explain that arrest to a jury, that is insufficient reason to curtail the First Amendment. No legal standard bats a thousand, and district courts already possess helpful tools to minimize the burdens of litigation in cases alleging constitutionally improper motives. See *Crawford-El*, 523 U. S., at 597–601. In addition, the burden of a (presumably indemnified²) officer facing trial pales in comparison to the importance of guarding core First Amendment activity against the clear potential for abuse that accompanies the arrest power. See *Lozman*, 585 U. S., at 101; Part II–B–2, *infra*.

Finally, and more fundamentally, even if the majority’s practical concerns were valid, they would not justify the Court’s mix-and-match approach to constitutional law. The Court relies heavily on *Devenpeck v. Alford*, 543 U. S. 146, 153–154 (2004), which held that an arresting officer’s state of mind does not matter for purposes of determining whether a Fourth Amendment seizure was supported by probable cause. From this Fourth Amendment holding, the Court extrapolates that First Amendment plaintiffs must show a lack of probable cause (or satisfy its new comparison-based workaround) before their retaliation claims can proceed. See *ante*, at 404, 407–408.

This analogy is misguided, and the Court has rightly disavowed it before. In *Whren v. United States*, 517 U. S. 806 (1996), the Court explained that while “[s]ubjective in-

motivating factor”” and also “ultimately” be able to show “‘but-for causation’” (quoting *Hartman*’s discussion of *Mt. Healthy*)).

In any event, the majority’s criticism is a red herring. There is nothing novel about applying *Mt. Healthy* in the retaliatory arrest context. *E. g.*, *Lozman v. Riviera Beach*, 585 U. S. 87, 101 (2018). The same cannot be said of the test concocted by the majority.

²See generally Schwartz, Police Indemnification, 89 N. Y. U. L. Rev. 885, 890 (2014) (empirical study finding that “[p]olice officers are virtually always indemnified”).

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tentions play no role in ordinary, probable-cause Fourth Amendment analysis,” that does not make evidence of an officer’s “actual motivations” any less relevant to claims of “selective enforcement” under the Equal Protection Clause. *Id.*, at 813; accord, *ante*, at 414–415 (opinion of GORSUCH, J.). First Amendment retaliation claims and equal protection claims are indistinguishable for these purposes; both inherently require inquiry into “an official’s motive.” *Crawford-El*, 523 U. S., at 585. Thus, even if the “[s]ubjective intent of the arresting officer . . . is simply no basis for invalidating an arrest” under the Fourth Amendment, *Devenpeck*, 543 U. S., at 154–155, when it comes to First Amendment freedom of speech, “the government’s reason” is often “what counts,” *Heffernan v. City of Paterson*, 578 U. S. 266, 273 (2016). Far from supporting the novel burden the Court imposes on First Amendment retaliatory arrest plaintiffs, then, the analogy on which the majority’s analysis depends is an unfounded exercise in hybridizing two different constitutional protections. The result is a Frankenstein-like constitutional tort that may do more harm than good.

B

Were it simply an unorthodox solution to an illusory problem, the standard announced today would be benign. But by rejecting direct evidence of unconstitutional motives in favor of more convoluted comparative proof, the majority’s standard proposes to ration First Amendment protection in an illogical manner. And those arbitrary legal results in turn will breed opportunities for the rare ill-intentioned officer to violate the First Amendment without consequence—and, in some cases, openly and unabashedly. These are costs the Court should not tolerate.

1

The basic error of the Court’s new rule is that it arbitrarily fetishizes one specific type of motive evidence—treatment of

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comparators—at the expense of other modes of proof.³ In particular, the majority goes out of its way to forswear reliance on an officer’s own “statements,” *ante*, at 407, even though such direct admissions may often be the best available evidence of unconstitutional motive. As a result, the Court’s standard in some cases will have the strange effect of requiring courts to blind themselves to smoking-gun evidence while simultaneously insisting upon an inferential sort of proof that, though potentially powerful, can be prohibitively difficult to obtain.

The Court’s decision to cast aside evidence of the arresting officer’s own statements is puzzling. See *ibid.* In other contexts, when the ultimate question is why a decisionmaker took a particular action, the Court considers the decisionmaker’s own statements (favorable or not) to be highly relevant evidence. See, e.g., *Masterpiece Cakeshop, Ltd. v. Colorado Civil Rights Comm’n*, 584 U.S. 617, 635–636 (2018); *Cooper v. Harris*, 581 U.S. 285, 299–301 (2017); *Foster v. Chatman*, 578 U.S. 488, 500–514 (2016); *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U.S. 520, 540–542 (1993); *Arlington Heights v. Metropolitan Housing Development Corp.*, 429 U.S. 252, 270 (1977). There is no reason to treat the same sort of evidence so differently here.

Perhaps the majority is worried that statements, like the mental states they evince, can be “‘easy to allege and hard to disprove.’” *Ante*, at 403 (quoting *Crawford-El*, 523 U.S., at 585). Such concerns, whatever their merits, are insufficient reason “to change the burden of proof for an entire category of claims.” *Id.*, at 594. Besides, more than ever before, an audiovisual record of key events is now often obtainable. Many police departments, for example, equip their

³See Koerner, Note, Between *Healthy* and *Hartman*: Probable Cause in Retaliatory Arrest Cases, 109 Colum. L. Rev. 755, 790–794 (2009) (identifying different varieties of evidence potentially available to prove retaliatory motive).

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officers with body-worn cameras.⁴ Smartphones that become video cameras with the flick of a thumb are ubiquitous, creating still more potential records.⁵ In this very case, a local news crew captured some of the relevant events on video, and the officers were wearing audio recorders (though neither had turned his on). The majority appears ready to forsake this body of probative evidence, even though it has the potential to narrow factual disputes and avert trials.

Instead, the majority suggests that comparison-based evidence is the sole gateway through the probable-cause barrier that it otherwise erects. Such evidence can be prohibitively difficult to come by in other selective-enforcement contexts, and it may be even harder for retaliatory arrest plaintiffs to muster.⁶ After all, while records of arrests and prosecutions can be hard to obtain, it will be harder still to identify arrests that never happened. And unlike race, gender, or other protected characteristics, speech is not typically sorted into statistical buckets that are susceptible of ready categorization and comparison.

The threshold exercise prescribed today—comparing and contrasting a plaintiff’s protected speech and allegedly illegal actions with the speech and behavior of others who could have been arrested but were not—is likely to prove vexing

⁴ See Fan, *Justice Visualized: Courts and the Body Camera Revolution*, 50 U. C. D. L. Rev. 897, 930–931 (2017) (noting that police departments in 88 of the 100 largest cities in the United States had “piloted or used police body cameras or ha[d] plans to do so” as of December 2015).

⁵ See Simonson, *Beyond Body Cameras: Defending a Robust Right To Record the Police*, 104 Geo. L. J. 1559, 1564–1565 (2016); Kreimer, *Pervasive Image Capture and the First Amendment: Memory, Discourse, and the Right To Record*, 159 U. Pa. L. Rev. 335, 340–341, 344–351 (2011).

⁶ See, e.g., McAdams, *Race and Selective Prosecution: Discovering the Pitfalls of Armstrong*, 73 Chi.-Kent L. Rev. 605, 618–623 (1998) (describing barriers to obtaining comparator evidence in selective-prosecution cases); Poulin, *Prosecutorial Discretion and Selective Prosecution: Enforcing Protection After United States v. Armstrong*, 34 Am. Crim. L. Rev. 1071, 1102–1106 (1997) (discussing examples).

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in most cases. I suspect that those who can navigate this requirement predominantly will be arrestees singled out at protests or other large public gatherings, where a robust pool of potential comparators happens to be within earshot, eyeshot, or camera-shot. See, *e. g.*, *Mam v. Fullerton*, 2013 WL 951401, *5 (CD Cal., Mar. 12, 2013) (denying summary judgment to an arresting officer where “the only difference between [the plaintiff] and those near him [in a crowd] was the cell phone being used to record”). While some who fit that bill undoubtedly need the protection, see, *e. g.*, Brief for National Press Photographers Association et al. as *Amici Curiae* 9–15 (collecting examples of journalists arrested during public protests or gatherings), it is hard to see why those plaintiffs are the only ones deserving of a § 1983 remedy.

2

Put into practice, the majority’s approach will yield arbitrary results and shield willful misconduct from accountability. As one example, suppose police respond to reports of a man prowling a front porch. The man says that he is a locked-out homeowner; the police want ID. The man alleges profiling; the officers insist they are just doing their jobs. Tempers flare. A passerby, stepping into a next-door neighbor’s yard for a clearer view of the confrontation, pulls out a cell phone camera and begins streaming video of the encounter to her social media followers. One of the officers notices and orders the passerby to stop recording. When the passerby persists, the officer places the passerby under arrest for trespassing.

Will this citizen journalist have an opportunity to prove that the arrest violated her First Amendment rights? Under the majority’s test, the answer seems to turn on how many other curious bystanders she can identify who were not arrested in a situation like hers. If she was one of a crowd to enter the neighbor’s yard that night, she can sue using her readily available comparator neighbors. But if she was keeping a lonely vigil, she is out of luck (unless she

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can find some other pool of comparable individuals). And the video of the officer demanding she stop recording moments before the arrest? Irrelevant, apparently. What sense does that make?

Worse, because the majority disclaims reliance on “statements and motivations” for its threshold inquiry, *ante*, at 407, it risks licensing even clear-cut abuses. Imagine that a reporter is investigating corruption in a police unit. An officer from that unit follows the reporter until the reporter exceeds the speed limit by five miles per hour, then delivers a steep ticket and an explicit message: “Until you find something else to write about, there will be many more where this came from.” Cf. *Torries v. Hebert*, 111 F. Supp. 2d 806, 812 (WD La. 2000) (describing allegations that a sheriff arrested proprietors of a local business and “threatened to arrest them again if they continued to play [rap] music”). If even such objectively probative evidence is irrelevant, § 1983 will provide no redress for such flagrant conduct. Meanwhile, the majority’s embrace of the *Devenpeck* rule suggests that a particularly brazen officer could arrest on transparently speech-based grounds and check the statute books later for a potential justification. See 543 U. S., at 153 (holding that probable cause need not be for an “offense actually invoked at the time of arrest”).

I do not mean to overstate the clarity of today’s holding. What exactly the Court means by “objective evidence,” “otherwise similarly situated,” and “the same sort of protected speech” is far from clear. See *ante*, at 407.⁷ I hope

⁷ It is also unclear what the majority means when it says that because its threshold “inquiry is objective, the statements and motivations of the particular arresting officer are ‘irrelevant.’” *Ante*, at 407. That could conceivably be read to mean that all statements are irrelevant, even objectively probative statements describing events in the world—*e. g.*, “I am arresting the libertarians, but not the nonlibertarian protesters who were also trespassing.” The facts asserted therein—that libertarians were arrested, nonlibertarians were not, and all were similarly trespassing—are precisely the kind of objective evidence the Court seeks. Similarly, routine police reports—on which the majority surely must intend for plaintiffs

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that courts approach this new standard commonsensically. It is hard to see what point is served by requiring a journalist arrested for jaywalking to point to specific other jaywalkers who got a free pass, for example, if statistics or common sense confirm that jaywalking arrests are extremely rare. Otherwise, there will be little daylight between the comparison-based standard the Court adopts and the absolute bar it ostensibly rejects.⁸

C

JUSTICE GORSUCH, alert to the illogic of the majority's position, instead contemplates borrowing a requirement to adduce "clear evidence" of prohibited purpose from our cases concerning equal-protection-based selective-prosecution claims. See *ante*, at 417–419 (citing *United States v. Armstrong*, 517 U.S. 456 (1996)).⁹ This suggestion, though perhaps an

to rely—are generally authored by, and thus "statements of," arresting officers. More likely, then, the majority means only that statements describing the officer's internal thought processes are irrelevant (*e. g.*, "I hate libertarians"). But many statements will fall somewhere in between (*e. g.*, "I'm only arresting you because I hate libertarians"). It is hard to see how workable lines can be drawn here.

⁸That could be the unintended result if courts interpret their new task too rigidly. Given the significant evidentiary challenges plaintiffs may face, the best assumption is that the Court intends courts to afford some latitude, especially at the outset of a case. That could mean relying on common experience to assess the most self-evidently minor infractions (such as the Court's jaywalking example); allowing plaintiffs to rely on rough comparisons or inexact statistical evidence where laboratory-like controls cannot realistically be expected; and permitting discovery into potential comparator evidence where a complaint raises a strong inference of unconstitutional motive. For similar reasons, I assume the Court intends courts to permit plaintiffs to draw from a broad universe of potential comparators. And because the test is "objective," *ante*, at 407, plaintiffs presumably can look beyond the practices of the specific officer or officers who arrested them, to see how other officers handle comparable infractions.

⁹To whatever extent the Court's opinion also seeks kinship with *Armstrong*, see *ante*, at 407, I note that *Armstrong* expressly reserved the question whether comparator evidence alone can provide sufficiently clear

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improvement over the majority’s approach, would nevertheless take a doctrine applying (1) equal protection principles (2) in a criminal proceeding to (3) charging decisions by prosecutors, see *id.*, at 458–459, 464–465, and ask it also to govern the application of (1) First Amendment principles (2) in a suit for civil damages challenging (3) arrests by police officers. JUSTICE GORSUCH commendably reserves judgment on a proposal not yet subjected to adversarial testing, so I too refrain from speaking too definitively. But I do note that we rejected a very similar rule in *Crawford-El*. See 523 U. S., at 594 (rejecting a “clear and convincing” standard for “constitutional claims that require proof of improper intent”). And whatever the merits of the *Armstrong* rule as currently applied in other contexts, there are good reasons—unexplored by the parties here—to hesitate before extending it.¹⁰

III

For the foregoing reasons, I agree with JUSTICE GINSBURG that the tried-and-true *Mt. Healthy* approach remains the correct one. And because petitioners have not asked us

evidence of discrimination or whether “‘direct admissions . . . of discriminatory purpose’” might also suffice. 517 U. S., at 469, n. 3. The Court should have followed that example here.

¹⁰ For example, JUSTICE GORSUCH suggests that a potential *Armstrong*-like rule might be supported by a concern for “separation of powers and federalism.” *Ante*, at 417. While those values are undoubtedly important, they have no apparent interpretive role to play here. Section 1983 exercises Congress’ Fourteenth Amendment power to enforce the Constitution against those who wield state authority, “whether they act in accordance with their authority or misuse it.” *Monroe v. Pape*, 365 U. S. 167, 172 (1961). It is an emphatic “extension of federal power” into state affairs, *id.*, at 182, one that by its plain terms covers all traditional state prerogatives—including the power to arrest—when wielded to violate federal constitutional rights. Abuses of the arrest power thus are unquestionably among the unconstitutional acts “under color of” state law against which § 1983 operates. See *id.*, at 184; see also *id.*, at 174, and n. 10.

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to revisit the Court of Appeals' application of the governing standard, I would affirm.

* * *

The power to constrain a person's liberty is delegated to law enforcement officers by the public in a sacred trust. The First Amendment stands as a bulwark of that trust, erected by people who knew from personal experience the dangers of abuse that follow from investing anyone with such awesome power. Cf. *Whitney v. California*, 274 U. S. 357, 375–376 (1927) (Brandeis, J., concurring). Because the majority shortchanges that hard-earned wisdom in the name of marginal convenience, I respectfully dissent.

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HOME DEPOT U. S. A., INC. *v.* JACKSONCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FOURTH CIRCUIT

No. 17–1471. Argued January 15, 2019—Decided May 28, 2019

Citibank, N. A., filed a debt-collection action in state court, alleging that respondent Jackson was liable for charges incurred on a Home Depot credit card. As relevant here, Jackson responded by filing third-party class-action claims against petitioner Home Depot U. S. A., Inc., and Carolina Water Systems, Inc., alleging that they had engaged in unlawful referral sales and deceptive and unfair trade practices under state law. Home Depot filed a notice to remove the case from state to federal court, but Jackson moved to remand, arguing that controlling precedent barred removal by a third-party counterclaim defendant. The District Court granted Jackson’s motion, and the Fourth Circuit affirmed, holding that neither the general removal provision, 28 U. S. C. § 1441(a), nor the removal provision in the Class Action Fairness Act of 2005, § 1453(b), allowed Home Depot to remove the class-action claims filed against it.

Held:

1. Section 1441(a) does not permit removal by a third-party counterclaim defendant. Home Depot emphasizes that it is a “defendant” to a “claim,” but § 1441(a) refers to “civil action[s],” not “claims.” And because the action as defined by the plaintiff’s complaint is the “civil action . . . of which the district cour[t]” must have “original jurisdiction,” “the defendant” to that action is the defendant to the complaint, not a party named in a counterclaim. This conclusion is bolstered by the use of the term “defendant” in related contexts. For one, the Federal Rules of Civil Procedure differentiate between third-party defendants, counterclaim defendants, and defendants. See, *e. g.*, Rules 14, 12(a)(1)(A)–(B). And in other removal provisions, Congress has clearly extended removal authority to parties other than the original defendant, see, *e. g.*, §§ 1452(a), 1454(a), (b), but has not done so here. Finally, if, as this Court has held, a counterclaim defendant who was the original plaintiff is not one of “the defendants,” see *Shamrock Oil & Gas Corp. v. Sheets*, 313 U. S. 100, 106–109, there is no textual reason to reach a different conclusion for a counterclaim defendant who was not part of the initial lawsuit. This reading, Home Depot asserts, runs counter to the history and purposes of removal by preventing a party involuntarily brought into state-court proceedings from removing the claim against it to

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federal court. But the limits Congress has imposed on removal show that it did not intend to allow all defendants an unqualified right to remove, see, *e. g.*, § 1441(b)(2), and Home Depot's interpretation makes little sense in the context of other removal provisions, see, *e. g.*, § 1446(b)(2)(A). Pp. 440–444.

2. Section 1453(b) does not permit removal by a third-party counterclaim defendant. Home Depot contends that even if § 1441(a) does not permit removal here, § 1453(b) does because it permits removal by “any defendant” to a “class action.” But the two clauses in § 1453(b) that employ the term “any defendant” simply clarify that certain limitations on removal that might otherwise apply do not limit removal under that provision. And neither clause—nor anything else in the statute—alters § 1441(a)'s limitation on *who* can remove, suggesting that Congress intended to leave that limit in place. In addition, §§ 1453(b) and 1441(a) both rely on the procedures for removal in § 1446, which also employs the term “defendant.” Interpreting that term to have different meanings in different sections would render the removal provisions incoherent. Pp. 444–446.

880 F. 3d 165, affirmed.

THOMAS, J., delivered the opinion of the Court, in which GINSBURG, BREYER, SOTOMAYOR, and KAGAN, JJ., joined. ALITO, J., filed a dissenting opinion, in which ROBERTS, C. J., and GORSUCH and KAVANAUGH, JJ., joined, *post*, p. 446.

William P. Barnette argued the cause for petitioner. On the briefs were *Sarah E. Harrington*, *Thomas C. Goldstein*, *Erica Oleszczuk Evans*, and *Kacy D. Goebel*.

F. Paul Bland argued the cause for respondent. With him on the brief were *Karla Gilbride*, *Leah M. Nicholls*, *Jennifer Bennett*, *Brian Warwick*, *Janet Varnell*, *David Lietz*, and *Daniel K. Bryson*.*

*Briefs of *amici curiae* urging reversal were filed for DRI—The Voice of the Defense Bar by *Lawrence S. Ebner*; for the Retail Litigation Center, Inc., et al. by *Laura K. McNally*, *Nina Ruvinsky*, *Deborah White*, and *Daryl Joseffer*; and for the Washington Legal Foundation et al. by *Richard A. Samp* and *Cory L. Andrews*.

Briefs of *amici curiae* urging affirmance were filed for the American Association for Justice by *Gerson H. Smoger*, *Elise Sanguinetti*, and *Jeffrey White*; and for the National Consumer Law Center by *Jason L. Lichtman*.

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JUSTICE THOMAS delivered the opinion of the Court.

The general removal statute, 28 U. S. C. § 1441(a), provides that “any civil action” over which a federal court would have original jurisdiction may be removed to federal court by “the defendant or the defendants.” The Class Action Fairness Act of 2005 (CAFA) provides that “[a] class action” may be removed to federal court by “any defendant without the consent of all defendants.” 28 U. S. C. § 1453(b). In this case, we address whether either provision allows a third-party counterclaim defendant—that is, a party brought into a lawsuit through a counterclaim filed by the original defendant—to remove the counterclaim filed against it. Because in the context of these removal provisions the term “defendant” refers only to the party sued by the original plaintiff, we conclude that neither provision allows such a third party to remove.

I

A

We have often explained that “[f]ederal courts are courts of limited jurisdiction.” *Kokkonen v. Guardian Life Ins. Co. of America*, 511 U. S. 375, 377 (1994). Article III, § 2, of the Constitution delineates “[t]he character of the controversies over which federal judicial authority may extend.” *Insurance Corp. of Ireland v. Compagnie des Bauxites de Guinee*, 456 U. S. 694, 701 (1982). And lower federal-court jurisdiction “is further limited to those subjects encompassed within a statutory grant of jurisdiction.” *Ibid.* Accordingly, “the district courts may not exercise jurisdiction absent a statutory basis.” *Exxon Mobil Corp. v. Allapattah Services, Inc.*, 545 U. S. 546, 552 (2005).

In 28 U. S. C. §§ 1331 and 1332(a), Congress granted federal courts jurisdiction over two general types of cases: cases that “aris[e] under” federal law, § 1331, and cases in which the amount in controversy exceeds \$75,000 and there is diversity of citizenship among the parties, § 1332(a). These jurisdictional grants are known as “federal-question jurisdic-

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tion” and “diversity jurisdiction,” respectively. Each serves a distinct purpose: Federal-question jurisdiction affords parties a federal forum in which “to vindicate federal rights,” whereas diversity jurisdiction provides “a neutral forum” for parties from different States. *Exxon Mobil Corp., supra*, at 552.

Congress has modified these general grants of jurisdiction to provide federal courts with jurisdiction in certain other types of cases. As relevant here, CAFA provides district courts with jurisdiction over “class action[s]” in which the matter in controversy exceeds \$5,000,000 and at least one class member is a citizen of a State different from the defendant. § 1332(d)(2)(A). A “class action” is “any civil action filed under Rule 23 of the Federal Rules of Civil Procedure or similar State statute or rule of judicial procedure.” § 1332(d)(1)(B).

In addition to granting federal courts jurisdiction over certain types of cases, Congress has enacted provisions that permit parties to remove cases originally filed in state court to federal court. Section 1441(a), the general removal statute, permits “the defendant or the defendants” in a state-court action over which the federal courts would have original jurisdiction to remove that action to federal court. To remove under this provision, a party must meet the requirements for removal detailed in other provisions. For one, a defendant cannot remove unilaterally. Instead, “all defendants who have been properly joined and served must join in or consent to the removal of the action.” § 1446(b)(2)(A). Moreover, when federal jurisdiction is based on diversity jurisdiction, the case generally must be removed within “1 year after commencement of the action,” § 1446(c)(1), and the case may not be removed if any defendant is “a citizen of the State in which such action is brought,” § 1441(b)(2).

CAFA also includes a removal provision specific to class actions. That provision permits the removal of a “class action” from state court to federal court “by any defendant

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without the consent of all defendants” and “without regard to whether any defendant is a citizen of the State in which the action is brought.” § 1453(b).

At issue here is whether the term “defendant” in either § 1441(a) or § 1453(b) encompasses a party brought into a lawsuit to defend against a counterclaim filed by the original defendant or whether the provisions limit removal authority to the original defendant.

B

In June 2016, Citibank, N. A., filed a debt-collection action against respondent George Jackson in North Carolina state court. Citibank alleged that Jackson was liable for charges he incurred on a Home Depot credit card. In August 2016, Jackson answered and filed his own claims: an individual counterclaim against Citibank and third-party class-action claims against Home Depot U. S. A., Inc., and Carolina Water Systems, Inc.

Jackson’s claims arose out of an alleged scheme between Home Depot and Carolina Water Systems to induce homeowners to buy water treatment systems at inflated prices. The crux of the claims was that Home Depot and Carolina Water Systems engaged in unlawful referral sales and deceptive and unfair trade practices in violation of North Carolina law, Gen. Stat. Ann. §§ 25A–37, 75–1.1 (2013). Jackson also asserted that Citibank was jointly and severally liable for the conduct of Home Depot and Carolina Water Systems and that his obligations under the sale were null and void.

In September 2016, Citibank dismissed its claims against Jackson. One month later, Home Depot filed a notice of removal, citing 28 U. S. C. §§ 1332, 1441, 1446, and 1453. Jackson moved to remand, arguing that precedent barred removal by a “third-party/additional counter defendant like Home Depot.” App. 51–52. Shortly thereafter, Jackson amended his third-party class-action claims to remove any reference to Citibank.

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The District Court granted Jackson’s motion to remand, and the Court of Appeals for the Fourth Circuit granted Home Depot permission to appeal and affirmed. 880 F. 3d 165, 167 (2018); see 28 U.S.C. §1453(c)(1). Relying on Circuit precedent, it held that neither the general removal provision, §1441(a), nor CAFA’s removal provision, §1453(b), allowed Home Depot to remove the class-action claims filed against it. 880 F. 3d, at 167–171.

We granted Home Depot’s petition for a writ of certiorari to determine whether a third party named in a class-action counterclaim brought by the original defendant can remove if the claim otherwise satisfies the jurisdictional requirements of CAFA. 585 U.S. 1058 (2018). We also directed the parties to address whether the holding in *Shamrock Oil & Gas Corp. v. Sheets*, 313 U.S. 100 (1941)—that an original plaintiff may not remove a counterclaim against it—should extend to third-party counterclaim defendants.¹ 585 U.S. 1058.

II

A

We first consider whether 28 U.S.C. §1441(a) permits a third-party counterclaim defendant to remove a claim filed against it.² Home Depot contends that because a third-party counterclaim defendant is a “defendant” to the claim against it, it may remove pursuant to §1441(a). The dissent agrees, emphasizing that “a ‘defendant’ is a ‘person sued in a civil proceeding.’” *Post*, at 454 (opinion of ALITO, J.). This reading of the statute is plausible, but we do not think it is

¹ In this opinion, we use the term “third-party counterclaim defendant” to refer to a party first brought into the case as an additional defendant to a counterclaim asserted against the original plaintiff.

² Section 1441(a) provides that “any civil action brought in a State court of which the district courts of the United States have original jurisdiction, may be removed by the defendant or the defendants, to the district court of the United States for the district and division embracing the place where such action is pending.”

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the best one. Of course the term “defendant,” standing alone, is broad. But the phrase “the defendant or the defendants” “cannot be construed in a vacuum.” *Davis v. Michigan Dept. of Treasury*, 489 U.S. 803, 809 (1989). “It is a fundamental canon of statutory construction that the words of a statute must be read in their context and with a view to their place in the overall statutory scheme.” *Ibid.*; see also A. Scalia & B. Garner, *Reading Law* 167 (2012) (“The text must be construed as a whole”); accord, *Bailey v. United States*, 516 U.S. 137, 145–146 (1995). Considering the phrase “the defendant or the defendants” in light of the structure of the statute and our precedent, we conclude that § 1441(a) does not permit removal by any counterclaim defendant, including parties brought into the lawsuit for the first time by the counterclaim.³

Home Depot emphasizes that it is a “defendant” to a “claim,” but the statute refers to “civil action[s],” not “claims.” This Court has long held that a district court, when determining whether it has original jurisdiction over a civil action, should evaluate whether that action could have been brought originally in federal court. See *Mexican Nat. R. Co. v. Davidson*, 157 U.S. 201, 208 (1895); *Tennessee v. Union & Planters’ Bank*, 152 U.S. 454, 461 (1894). This requires a district court to evaluate whether the plaintiff could have filed its operative complaint in federal court, either because it raises claims arising under federal law or because it falls within the court’s diversity jurisdiction. *E.g.*, *Franchise Tax Bd. of Cal. v. Construction Laborers Vacation Trust for Southern Cal.*, 463 U.S. 1, 10 (1983); cf. *Holmes Group, Inc. v. Vornado Air Circulation Systems, Inc.*, 535 U.S. 826, 831 (2002) (“[A] counterclaim . . . cannot serve as the basis for ‘arising under’ jurisdiction”);

³ Even the dissent declines to rely on the dictionary definition of “defendant” alone, as following that approach to its logical conclusion would require overruling *Shamrock Oil & Gas Corp. v. Sheets*, 313 U.S. 100 (1941). See *post*, at 455, n. 2.

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§ 1446(c)(2) (deeming the “sum demanded in good faith in the initial pleading . . . the amount in controversy”). Section 1441(a) thus does not permit removal based on counterclaims at all, as a counterclaim is irrelevant to whether the district court had “original jurisdiction” over the civil action. And because the “civil action . . . of which the district cour[t]” must have “original jurisdiction” is the action as defined by the plaintiff’s complaint, “the defendant” to that action is the defendant to that complaint, not a party named in a counterclaim. It is this statutory context, not “the policy goals behind the [well-pleaded complaint] rule,” *post*, at 468, that underlies our interpretation of the phrase “the defendant or the defendants.”

The use of the term “defendant” in related contexts bolsters our determination that Congress did not intend for the phrase “the defendant or the defendants” in § 1441(a) to include third-party counterclaim defendants. For one, the Federal Rules of Civil Procedure differentiate between third-party defendants, counterclaim defendants, and defendants. Rule 14, which governs “Third-Party Practice,” distinguishes between “the plaintiff,” a “defendant” who becomes the “third-party plaintiff,” and “the third-party defendant” sued by the original defendant. Rule 12 likewise distinguishes between defendants and counterclaim defendants by separately specifying when “[a] defendant must serve an answer” and when “[a] party must serve an answer to a counterclaim.” Fed. Rules Civ. Proc. 12(a)(1)(A)–(B).

Moreover, in other removal provisions, Congress has clearly extended the reach of the statute to include parties other than the original defendant. For instance, § 1452(a) permits “[a] party” in a civil action to “remove any claim or cause of action” over which a federal court would have bankruptcy jurisdiction. And §§ 1454(a) and (b) allow “any party” to remove “[a] civil action in which any party asserts a claim for relief arising under any Act of Congress relating to patents, plant variety protection, or copyrights.” Section

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1441(a), by contrast, limits removal to “the defendant or the defendants” in a “civil action” over which the district courts have original jurisdiction.

Finally, our decision in *Shamrock Oil* suggests that third-party counterclaim defendants are not “the defendant or the defendants” who can remove under § 1441(a). *Shamrock Oil* held that a counterclaim defendant who was also the original plaintiff could not remove under § 1441(a)’s predecessor statute. 313 U. S., at 106–109. We agree with Home Depot that *Shamrock Oil* does not specifically address whether a party who was not the original plaintiff can remove a counterclaim filed against it. And we acknowledge, as Home Depot points out, that a third-party counterclaim defendant, unlike the original plaintiff, has no role in selecting the forum for the suit. But the text of § 1441(a) simply refers to “the defendant or the defendants” in the civil action. If a counterclaim defendant who was the original plaintiff is not one of “the defendants,” we see no textual reason to reach a different conclusion for a counterclaim defendant who was not originally part of the lawsuit. In that regard, *Shamrock Oil* did not view the counterclaim as a separate action with a new plaintiff and a new defendant. Instead, the Court highlighted that the original plaintiff was still “the plaintiff.” *Id.*, at 108 (“We can find no basis for saying that Congress, by omitting from the present statute all reference to ‘plaintiffs,’ intended to save a right of removal to some plaintiffs and not to others”). Similarly here, the filing of counterclaims that included class-action allegations against a third party did not create a new “civil action” with a new “plaintiff” and a new “defendant.”

Home Depot asserts that reading “the defendant” in § 1441(a) to exclude third-party counterclaim defendants runs counter to the history and purposes of removal by preventing a party involuntarily brought into state-court proceedings from removing the claim against it. But the limits Congress has imposed on removal show that it did not intend